COMPANY NAME:

Hillcrest

PROCEDURE NUMBER:

G10D

PROCEDURE TITLE:

Data Sharing

This document can be produced in different formats, for example, in larger print or audio-format, and in other languages, as appropriate. We promote equality through seeking to eliminate unlawful and unfair treatment on the ground of any protected characteristic, as appropriate.

1. Introduction

Data sharing, otherwise known as information sharing, is the disclosure of information from one organisation to another or between multiple organisations. It can also refer to the sharing of data within an organisation. Data sharing can take many forms:

- a reciprocal exchange of data
- one or more organisations providing data to a third party or parties
- several organisations pooling information and making it available to each other
- several organisations pooling information and making it available to a third party or parties
- exceptional, one-off disclosures of data in unexpected or emergency situations
- different parts of the same organisation making data available to each other.

This procedure refers only to the sharing of personal data under the Data Protection legislation. It covers both systematic sharing of personal data and one-off decisions to share personal data.

This procedure should be read in conjunction with G10 Data Protection Policy and G10A Data Protection Procedure.

Hillcrest

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Contents

1. Introduction....1
2. Why is personal data being shared?....3
3. What is being shared?....3
4. What is the lawful basis for sharing the data?....3
5. How to share data....5
6. Informing the data subject....5
7. Data sharing agreements and contracts....6
8. Responsibility....7
9. Reviewing the data sharing....7
Procedure Document Governance and Management....8
....8

2. Why is personal data being shared?

In order to comply with the Data Protection Principles the sharing of personal data must be for a specific and legitimate purpose. This purpose must be determined prior to the sharing of data. To help determine the purpose, consider what the sharing is meant to achieve and what its objectives are. On most occasions the reason for the sharing of data will be clear and obvious. If there is no specific and legitimate reason to share the personal data, then no personal data should be shared.

Additionally, you must consider if the purpose could be achieved without the sharing of personal data. For example, could the data be anonymised or pseudonymised (replacing identifying information with artificial data e.g. Mr X)?

These considerations should be taken into account when setting up regular sharing of personal data or when making one-off decisions to share data.

3. What is being shared?

When sharing personal data, only the minimum data necessary should be shared. Having determined why you are sharing the data, you should identify what data needs to be shared in order to fulfil that purpose. No further personal data should be shared. For example, if the purpose could be fulfilled by providing a third party with only a person's name then no other details, like their date of birth or address, should be shared.

You should take reasonable steps to ensure that the data being shared is accurate. If you discover that inaccurate data has been shared then you are obliged to contact the organisations the data has been shared with in order to correct this inaccuracy unless this is impossible or would involve disproportionate effort.

4. What is the lawful basis for sharing the data?

For the sharing of data to be lawful, it must be based on a lawful basis in the Data Protection legislation. The lawful bases are:

(a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;

(b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

(c) processing is necessary for compliance with a legal obligation to which the data controller (company within Hillcrest) is subject;

(d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;

(e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller (company within Hillcrest);

(f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

Prior to sharing data, whether setting up a sharing agreement or just sharing on a one-off occasion, you must decide on which lawful basis the sharing will be based. Sharing of data should only be based on consent if no other basis can be identified. You should not seek consent if you would need to continue sharing the data if an individual withdrew their consent.

If sharing is based on consent, you must gain this from the individual prior to sharing personal data. Under the GDPR, consent means 'any freely given, specific, informed and unambiguous indication of the data subject's wishes by which he or she, by a statement or by a clear affirmative action, signifies agreement to the processing of personal data relating to him or her.' Therefore the individual must be informed of the data sharing and must actively consent. We cannot rely on silence, pre-ticked boxes, opt-out measures or any other form of inactivity.

If you are sharing sensitive data, anything classed as a special category of data under the GDPR or data relating to criminal convictions or offences, then there are additional lawful bases which must be met (both the special categories of data and the further lawful bases can be found in G10A Data Protection Procedure).

5. How to share data

Personal data should be shared in a safe and secure manner. You should consider the method by which information should be shared e.g. verbal, face to face, email, automated transfer etc.

Where data is being shared using any electronic means, the IT department should be consulted to ensure that appropriate technological measures are in place to ensure the security of the data.

Part of this exercise should include checking that the organisation the data is being shared with has appropriate measures in place to protect the data.

6. Informing the data subject

Prior to sharing personal data, individuals should be informed of certain details. This is necessary in most circumstances but exceptions are when the sharing of data is already clear and obvious to the individual or where data is being shared for the prevention or detection of crime, the apprehension or prosecution of offenders or the assessment or collection of tax duty. In emergency situations it may not be possible to inform a data subject prior to sharing data but this should be done after the sharing of data at the earliest opportunity. The details to be provided are listed in section 5 of G10A Data Protection Procedure.

This information may already have been provided in Hillcrest's privacy notice on the website or in a privacy statement provided to the individual when the data was collected. If so, we will already have met any obligation to inform individuals of the processing. Where the processing of information is new, unexpected, a one-off occasion and is not covered by a privacy notice or statement, we will need to actively inform individuals of the data sharing. The same exceptions as described above will apply.

When informing individuals of data sharing, we should include the information listed in section 5 of G10A Data Protection Procedure except the elements already covered in a privacy notice or statement. Informing individuals can be done by contacting them directly (in writing so there is evidence of our actions) or, in circumstances where the processing is minor in nature, by publishing an updated privacy notice and drawing attention to it. Consideration must be given to whether or not a published privacy notice is accessible to all individuals.

Where information is shared between two data controllers, it is important to decide who will inform data subjects of the data sharing. In general, this obligation falls to the organisation that originally collected the data but it is good practice for both to ensure data subjects are aware of the data sharing, particularly when different organisations are sharing the same data but for different purposes.

7. Data sharing agreements and contracts

Where the sharing of data will be on a regular or routine basis, you should use a data sharing agreement to document the data sharing and to set the various conditions for the sharing of information. The agreement should include what is being shared and why, how it will be shared, what the lawful basis is for sharing the data and any other necessary information. For a starting point, please see Appendix 1 – Data Sharing Agreement Template. Any data sharing agreements should be signed by all Parties prior to the sharing of information.

Where personal data is being shared with a data processor that will be processing data on behalf of any company within Hillcrest, the processing **must** be governed by a contract (or other legal act) in order to comply with the GDPR. That contract must stipulate the following:

- that the data processor will only process data in line with written instructions from the data controller
- that the persons processing the personal data have committed themselves to confidentiality
- that the data processor will comply with Article 32 of the GDPR (implementing appropriate security measures)
- that the data processor will not engage another data processor without prior written authorisation from Hillcrest and, where another data processor is engaged, that the same obligations are imposed on that processor by contract (or other legal act)
- that the data processor will assist in responding to a data subject exercising their rights
- that the data processor will assist in ensuring compliance with articles 32 to 36 of the GDPR
- that the data processor will return or delete (it will be our choice to decide) all personal data at the end of the contract and deletes any existing copies
- that the data processor will make available all information necessary to demonstrate compliance with Article 28 of the GDPR and allow for and contribute to audits and inspections carried out by, or on behalf of, Hillcrest.

Where there is an agreement or contract between Hillcrest and another company in relation to the processing of personal data, a copy of the agreement or contract should be provided to the Information Governance Adviser so they can have oversight of the sharing through a Data Sharing Log. This log will note the company the data is being shared with and relevant dates for reviewing the agreement/contract.

8. Responsibility

Decisions relating to the sharing of personal data should be taken by the manager of the service/department that holds the information. This may be a decision about the regular sharing of data or a one-off decision to share data. This does not prevent staff sharing information in line with agreed processes as the decision about data sharing will already have been made in these circumstances.

Where procedures and agreements are in place, all staff are responsible for ensuring they follow the correct processes when sharing data.

All staff are responsible for ensuring that personal data relating to tenants, service users, staff and other data subjects should not be shared with any person who is not entitled to have that information.

Employees should seek the advice of the Information Governance Adviser when necessary but particularly when considering new ways of sharing personal data.

9. Reviewing the data sharing

Any arrangements for the sharing of data should be kept under review to ensure that the sharing continues to be appropriate and is achieving its purpose. Timeframes for reviews should be documented and complied with and should be included in any data sharing agreements that are in place.

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Procedure Document Governance and Management

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